

PHILIPPINE CRIMINAL LAW (BOOK ONE)

**GENERAL PRINCIPLES, CONSTITUTIONAL LIMITATIONS, AND ARTICLES 1–10
OF THE REVISED PENAL CODE**

*A Comprehensive Law School Textbook, Doctrinal Commentary, and Bar Examination Treatise
Based on the Works of Justice Luis B. Reyes, Supreme Court Jurisprudence, and the 1987 Constitution*

PREFACE AND STUDY GUIDE

The study of Criminal Law in the Philippine Juris Doctor curriculum is the study of the state's most formidable sovereign prerogative—the power to define crimes, prosecute offenders, and deprive human beings of liberty or property for the preservation of public order.

Under the Philippine legal system, criminal law is strictly statutory. We adhere firmly to the cardinal maxim **nullum crimen, nulla poena sine lege** (there is no crime when there is no law punishing it). Unlike common law jurisdictions where courts may recognize judge-made or customary crimes, the Philippine Revised Penal Code (Act No. 3815, as amended) and special penal legislation require an express legislative enactment before any human act or omission can be visited with penal sanction.

Pedagogical Framework of this Treatise

This treatise is specifically curated and synthesized for law students, bar candidates, and legal scholars. It integrates:

1. **The Classical and Positivist Foundations** popularized by the definitive works of Justice Luis B. Reyes, Dean Antonio L. Gregorio, and Justice Florenz Regalado.
 2. **The Constitutional Matrix** anchored on the 1987 Constitution of the Republic of the Philippines (Bill of Rights, Police Power, and Legislative Authority).
 3. **Exhaustive Article-by-Article Commentary on Articles 1 through 10 of the Revised Penal Code**, detailing all legal elements, stages of execution, conspiracy doctrines, proximate causation, and impossible crimes.
 4. **Landmark Supreme Court Jurisprudence**, presenting complete case briefs (Facts, Issues, Rulings, and Doctrinal Principles) for all syllabus-mandated cases.
 5. **Bar Examination Problem Scenarios and Model Answers**, demonstrating the rigorous ALAC (Answer-Legal Basis-Application-Conclusion) method expected in Philippine Bar Examinations.
-

CHAPTER 1: INTRODUCTION & GENERAL PRINCIPLES OF CRIMINAL LAW

1.1 Definition, Nature, and Scope of Criminal Law

Criminal Law is that branch or division of municipal law which defines crimes, treats of their nature, and provides for their punishment.

Core Legal Terminology

- **Crime:** A generic term referring to any act committed or omitted in violation of a public law forbidding or commanding it.
- **Felony (*Delito*):** An act or omission punishable by the **Revised Penal Code (Act No. 3815)**. Felonies are committed either by means of deceit (*dolo*) or fault (*culpa*) (Art. 3, RPC).
- **Offense:** An act or omission punishable by **Special Penal Laws** (statutes enacted by the legislature outside the RPC, such as Republic Acts, Batas Pambansa, or Presidential Decrees).
- **Infraction / Misdemeanor:** A violation of a local or municipal ordinance.
- **Delict:** A civil wrong or injury resulting from a criminal act, giving rise to civil liability (*ex delicto*) under Article 100 of the Revised Penal Code.

Nature of Criminal Law

1. **Public Law:** Crimes are regarded as offenses committed against the entire sovereign State and the People, not merely private wrongs against the immediate victim. Consequently:

- Criminal actions are brought in the name of the **People of the Philippines** (*People v. Santiago*, 43 Phil. 120).
- The offended party cannot pardon or compromise criminal liability to extinguish public prosecution, except where expressly permitted by statute (e.g., private crimes of adultery and concubinage under Art. 344, or slight offenses subject to barangay conciliation).

2. **Substantive Law:** It creates, defines, and regulates rights and obligations concerning penal responsibility, distinguishing it from *Criminal Procedure* (which is adjective/remedial law governing the machinery of detection, arrest, trial, and judgment).

1.2 Sources of Philippine Criminal Law

Philippine Criminal Law is derived exclusively from written enactments. The sources are:

1. The Revised Penal Code (Act No. 3815):

- Enacted by the Philippine Legislature on December 8, 1930; took effect on **January 1, 1932** (Art. 1, RPC).
- Structured in two books: *Book One* (Articles 1–113: General Principles, Penalties, Persons Liable, Extinction of Liability) and *Book Two* (Articles 114–367: Specific Felonies).
- Derived historically from the Spanish Penal Code of 1870 (*Código Penal de España*), adapted to Philippine customs through a Code Committee chaired by Justice Anacleto Diaz.

2. Special Penal Laws:

- Acts passed by the Philippine Commission, Philippine Assembly, National Assembly, Congress of the Philippines (Republic Acts), Batasang Pambansa (Batas Pambansa), and Presidential Decrees / Executive Orders issued during periods of valid legislative authority.
- Examples include R.A. 9165 (Comprehensive Dangerous Drugs Act), R.A. 9262 (Anti-VAWC Act), R.A. 3019 (Anti-Graft and Corrupt Practices Act), and B.P. Blg. 22 (Bouncing Checks Law).

3. Penal Executive Orders and Administrative Regulations:

- Valid only when authorized by a primary enabling statute that sets sufficient standards and expressly provides that a violation of such regulations constitutes a criminal offense.
- Must be published in full in the Official Gazette or a newspaper of general circulation prior to effectivity (*Tañada v. Tuvera*, *Pesigan v. Angeles*).

Non-Recognition of Common Law Crimes

The Philippines does **not** recognize common law crimes. No matter how reprehensible, immoral, or socially harmful an act may be, if there is no statute defining it as a crime and prescribing a specific penalty, no person can be prosecuted or punished therefor.

Role of Supreme Court Decisions

Under Article 8 of the Civil Code of the Philippines, judicial decisions applying or interpreting the laws or the Constitution form a part of the legal system of the Philippines (*jurisprudencia*). However, court decisions are **not** independent sources of criminal law; they merely declare what the law means and apply legislative intent. The judiciary has no power to create crimes (*separation of powers*).

1.3 Underlying Philosophies and Theories of Criminal Law

Philippine penal law is a composite of different historical and philosophical schools of thought:

1. The Classical (Juridical) Theory

- **Core Premise:** Human beings are moral creatures endowed with **absolute free will** to choose between good and evil.
- **Basis of Criminal Liability:** Free will, moral culpability, and voluntary choice.
- **Purpose of Penalty: Retributive justice** ("an eye for an eye, a tooth for a tooth"). The penalty must be mathematically proportionate to the gravity of the offense committed.
- **Focus:** The **CRIME**, not the criminal.
- **Application in RPC:** The Revised Penal Code is predominantly Classical in structure. It establishes a rigid scale of graduated, pre-determined penalties (Art. 25 & 71) calibrated strictly according to the objective gravity of the felony.

2. The Positivist (Realistic / Italian) Theory

- **Core Premise:** Man is subdued occasionally by a strange and morbid phenomenon which constrains him to do wrong. Crime is a social and natural phenomenon produced by biological, psychological, hereditary, and environmental factors.

- **Basis of Criminal Liability:** The dangerous tendency or social dangerousness (*temeridad*) of the actor.
- **Purpose of Penalty: Reformation, prevention, and social defense.** The criminal is regarded as a socially sick individual who needs treatment, rehabilitation, and cure rather than sheer vengeance.
- **Focus:** The **CRIMINAL**, not the crime.
- **Application in Philippine Law:** Seen in the **Indeterminate Sentence Law (Act No. 4103)**, the **Probation Law (P.D. 968)**, the **Juvenile Justice and Welfare Act (R.A. 9344)**, and the punishment of **Impossible Crimes (Art. 4, Par. 2, RPC)**.

3. The Eclectic or Mixed Theory

- **Core Premise:** Combines the Classical and Positivist approaches.
- **Application in the Philippines:** The Philippine legal system is fundamentally **Eclectic**. The RPC maintains a Classical framework for defining grave and less grave offenses and fixing statutory penalties, but infuses Positivist principles through mitigating circumstances, restorative justice for youth offenders, executive clemency, and non-confinement rehabilitation.

4. The Utilitarian Theory (Protective Theory)

- **Core Premise:** The primary purpose of criminal law is the protection of society. Penalties serve as a deterrent (*general deterrence* and *specific deterrence*) to maximize overall social welfare and minimize social harm.

1.4 State Authority to Punish Crimes (*Jus Puniendi*)

The authority of the State to punish crimes emanates from its inherent **Police Power**—the sovereign power to enact laws promoting public health, safety, morals, order, and general welfare.

Constitutional Foundations:

1. Article 2, Section 5, 1987 Constitution:

"The maintenance of peace and order, the protection of life, liberty, and property, and promotion of the general welfare are essential for the enjoyment by all the people of the blessings of democracy."

2. Article 6, Section 1, 1987 Constitution:

"The legislative power shall be vested in the Congress of the Philippines..."

- The power to define crimes and prescribe penalties is **exclusively legislative**. Neither the Executive nor the Judiciary can usurp this authority.

Inherent Limitations on Penal Power:

- A penal law must be of general application.
- It must not infringe upon the Bill of Rights (e.g., prohibition of ex post facto laws, bills of attainder, cruel and unusual punishments).

- It must observe substantive and procedural Due Process.

1.5 Construction and Interpretation of Penal Laws

The interpretation of penal statutes is governed by strict, time-tested judicial canons:

1. Rule of Strict Construction (*In Dubio Pro Reo*):

- Penal laws are strictly construed against the State and liberally in favor of the accused.
- Ambiguities in a statute must be resolved in favor of liberty. If a statute is susceptible of two interpretations—one strict against the accused and another liberal—the liberal interpretation must prevail.

2. The Spanish Text Governs over the English Translation:

- The Revised Penal Code was approved and enacted by the Philippine Legislature in **Spanish** (Act No. 3815, *Código Penal Revisado*).
- Therefore, in case of a discrepancy between the original Spanish text and the official English translation, the **Spanish text is controlling** (*People v. Manaba*, 58 Phil. 665; *People v. Garcia*, 94 Phil. 814).

3. Prospective Interpretation:

- Penal statutes operate prospectively unless the new law is favorable to the accused and the accused is not a habitual delinquent (Art. 21 & 22, RPC).

1.6 Clarification: The Relationship between RPC Articles 5 & 21 and the 1987 Constitution

(Addressing the Law Student Query: "Art. 5 and 21 ba is from 1987 consti?")

Definitive Legal Analysis:

1. Statutory Origin:

- **Article 5** and **Article 21** are **statutory provisions of the Revised Penal Code (Act No. 3815)** enacted in 1930, which took effect on January 1, 1932. They are **not** verbatim provisions of the 1987 Constitution.

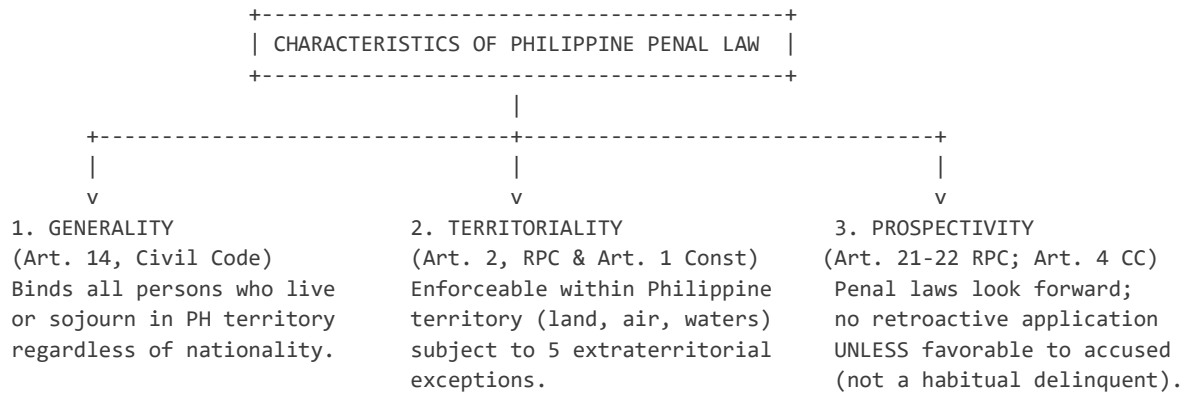
2. Constitutional Alignment & Implementation:

- While Articles 5 and 21 are statutes, they are the direct statutory operationalization of fundamental constitutional guarantees:
- **Article 21 RPC** ("*No felony shall be punishable by any penalty not prescribed by law prior to its commission*") directly implements the **Due Process Clause (Art. 3, Sec. 1, 1987 Const.)** and the **Ex Post Facto Clause (Art. 3, Sec. 22, 1987 Const.)**. It codifies the universal maxim **nullum crimen, nulla poena sine lege**.
- **Article 5 RPC** (*Duty of the court in connection with acts which should be repressed but are not covered by the law, and in cases of excessive penalties*) enforces the constitutional **Separation of Powers (Art. 6, Sec. 1)** by preventing judges from legislating crimes from the bench, while establishing a formal

mechanism to petition the Executive for clemency under **Article 7, Section 19 (Pardoning Power)** when a statutory penalty is overly harsh.

CHAPTER 2: THE THREE ESSENTIAL CHARACTERISTICS OF CRIMINAL LAW (G-T-P)

Philippine Criminal Law possesses three fundamental, defining characteristics: **Generality**, **Territoriality**, and **Prospectivity** (acronym: **G-T-P**).



2.1 The Generality Principle

Statutory Rule:

Article 14, Civil Code of the Philippines:

"Penal laws and those of public security and safety shall be obligatory upon all who live or sojourn in the Philippine territory, subject to the principles of public international law and to treaty stipulations."

Core Meaning:

Penal laws apply equally to all persons within Philippine territory, whether they are Filipino citizens or foreign aliens, regardless of race, sex, rank, or social standing. Foreigners residing or traveling in the Philippines owe local allegiance to Philippine penal statutes (*People v. Galacgac*, 54 O.G. 1027).

Exceptions to Generality:

1. Treaty Stipulations & International Agreements

- Sovereign states may enter into treaties waiving or modifying penal jurisdiction over certain foreign personnel.
- **Visiting Forces Agreement (VFA) & Enhanced Defense Cooperation Agreement (EDCA)**: Philippine authorities have primary jurisdiction over US military personnel regarding offenses committed under Philippine law, except where the offense is solely against the property or security of the US, or solely against the person/property of another US personnel, or committed in the performance of official military duty.

2. Principles of Public International Law

- Under customary international law and the Vienna Convention on Diplomatic Relations, certain high-ranking foreign dignitaries are immune from the criminal jurisdiction of the host State:
- Foreign Sovereigns and Heads of State.
- Ambassadors, Ministers Plenipotentiary, and Envoys.
- Diplomatic agents and members of the diplomatic staff.
- **CRITICAL BAR EXAM DISTINCTION: Ambassadors vs. Consuls:**
- **Ambassadors and Diplomatic Ministers:** Enjoy full immunity from local criminal arrest and prosecution. If they commit a crime, they can only be declared *persona non grata* and expelled.
- **Consuls and Vice-Consuls:** Are commercial/administrative agents representing their home country's trade and commercial interests. Consuls **DO NOT enjoy diplomatic immunity from criminal prosecution** for felonies committed under Philippine law, unless an express treaty stipulation grants such immunity (*Schneckenburger v. Moran*, 63 Phil. 249).

3. Laws of Preferential Application (Constitutional Immunity)

- **Article 6, Section 11, 1987 Constitution (Parliamentary Immunity):**
- *Immunity from Arrest:* A Senator or Member of the House of Representatives is privileged from arrest while Congress is in session in all offenses punishable by not more than six (6) years imprisonment.
- *Speech and Debate Privilege:* No member shall be questioned nor be held liable in any other place for any speech or debate in the Congress or in any committee thereof (absolute immunity from libel/defamation for legislative acts).

2.2 The Territoriality Principle

Statutory Rule:

Article 2, Revised Penal Code:

"Except as provided in the treaties and laws of preferential application, the provisions of this Code shall be enforced not only within the Philippine Archipelago, including its atmosphere, its interior waters and maritime zone, but also outside of its jurisdiction, against those who:

1. Should commit an offense while on a Philippine ship or airship;

2. Should forge or counterfeit any coin or currency note of the Philippine Islands or obligations and securities issued by the Government of the Philippine Islands;

3. Should be liable for acts connected with the introduction into these islands of the obligations and securities mentioned in the presiding number;

4. *While being public officers or employees, should commit an offense in the exercise of their functions; or*

5. *Should commit any of the crimes against national security and the law of nations, defined in Title One of Book Two of this Code."*

Spatial Scope:

Philippine penal laws are enforceable within the **National Territory** as defined in Article 1 of the 1987 Constitution:

1. **Terrestrial Domain:** Land mass and islands.
2. **Fluvial Domain:** Interior waters, rivers, lakes, bays, and the territorial sea (maritime zone up to 12 nautical miles).
3. **Aerial Domain:** Atmosphere and airspace above the terrestrial and fluvial domains.

The Five Extraterritorial Exceptions (Article 2, RPC):

Philippine courts possess extraterritorial penal jurisdiction over crimes committed beyond Philippine territorial boundaries in the following exclusive cases:

1. Offense committed on a Philippine Ship or Airship:

- The vessel or aircraft must be registered under the laws of the Philippines (flying the Philippine flag or registered with MARINA / CAAP).
- Applies when the vessel is in international waters or high seas. If the vessel is docked within the territorial waters of a foreign sovereign state, the foreign state's laws generally apply.

2. Forging or Counterfeiting Philippine Coins, Currency Notes, or Government Obligations:

- Protects the financial integrity and credit of the Republic against transnational counterfeiting syndicates.

3. Introduction into the Philippines of Forged or Counterfeit Obligations and Securities:

- Covers the act of smuggling or bringing such counterfeit instruments into Philippine territory.

4. Crimes Committed by Public Officers or Employees in the Exercise of their Functions:

- Offenses committed abroad by Philippine diplomats, consular officers, attaches, or state agents *in connection with their official functions* (e.g., Direct Bribery under Art. 210, Malversation under Art. 217, Falsification of consular documents under Art. 171).
- Purely private crimes committed abroad by public officers (e.g., physical injuries during a private vacation) are not covered.

5. Crimes Against National Security and the Law of Nations (Title 1, Book 2, RPC):

- Includes **Treason (Art. 114)**, **Conspiracy and Proposal to Commit Treason (Art. 115)**, **Espionage (Art. 117)**, **Inciting to War (Art. 118)**, **Violation of Neutrality (Art. 119)**, **Correspondence with Hostile Country (Art. 120)**, **Flight to Enemy's Country (Art. 121)**, **Piracy and Mutiny on the High Seas (Art. 122)**, and **Qualified Piracy (Art. 123)**.

Jurisdiction Over Foreign Merchant Vessels in Territorial Waters

When a foreign merchant vessel enters Philippine territorial waters, two conflicting international legal doctrines determine penal jurisdiction:

Legal Doctrine	Core Rule	Local Host State Jurisdiction
The French Rule (<i>Flag State Jurisdiction</i>)	Crimes committed aboard a foreign merchant vessel are governed by the law of the flag state (country of registry).	Local courts DO NOT have jurisdiction UNLESS the crime affects the peace, safety, or public order of the host territory.
The English Rule (<i>Territorial Jurisdiction</i>)	Crimes committed aboard a foreign merchant vessel within territorial waters are triable by local courts.	Local courts HAVE jurisdiction UNLESS the crime affects solely the internal discipline of the ship or the crew amongst themselves.

The Philippine Adoption of the English Rule:

The Philippines strictly follows the **English Rule** (*US v. Look Chaw*, 18 Phil. 573; *People v. Wong Cheng*, 46 Phil. 729; *US v. Bull*, 15 Phil. 7).

- **Rule on Opium / Dangerous Drugs:**
- Mere possession of opium aboard a foreign merchant vessel *in transit* through Philippine waters does not compromise public order and is not triable locally (*US v. Look Chaw*).
- However, **smoking opium** or **landing/unloading opium** onto Philippine soil immediately disrupts public order and moral safety, subjecting the offenders to Philippine court jurisdiction (*People v. Wong Cheng*; *US v. Ah Sing*, 36 Phil. 978).

2.3 The Prospectivity Principle

Statutory Rule:

Article 21, Revised Penal Code:

"No felony shall be punishable by any penalty not prescribed by law prior to its commission."

Article 22, Revised Penal Code:

"Penal laws shall have a retroactive effect in so far as they favor the person guilty of a felony, who is not a habitual criminal, as this term is defined in Rule 5 of Article 62 of this Code, although at the time of the publication of such laws a final sentence has been pronounced and the convict is serving the same."

Article 4, Civil Code of the Philippines:

"Laws shall have no retroactive effect, unless the contrary is provided."

Core Meaning:

Penal laws operate prospectively (*lex prospicit, non respicit*—the law looks forward, not backward). An act is judged according to the penal law in force at the exact moment of its commission.

The Favorable Retroactivity Exception (Article 22, RPC):

A penal statute will be applied retroactively if all the following conditions concur:

1. The new law is **favorable to the accused** (e.g., it decriminalizes the conduct, reduces the penalty, creates a new mitigating circumstance, or shortens the prescriptive period).
2. The accused is **not a habitual delinquent** (under Art. 62, Par. 5, RPC).
3. The new law does not contain an express non-retroactivity savings clause.

Application to Final Judgments:

Remarkably, under Article 22, favorable retroactivity applies **even if a final judgment of conviction has already been rendered and the convict is currently serving sentence**. The convict may file a petition for *Habeas Corpus* or a motion for re-computation of sentence to secure immediate release or sentence reduction (*People v. Moran*, 44 Phil. 387; *Gumabon v. Director of Prisons*, 37 SCRA 420).

Definition of a Habitual Delinquent (Article 62, Par. 5, RPC):

A person is deemed a habitual delinquent if, within a period of **ten (10) years** from the date of his release or last conviction of the crimes of:

- Falsification,
- Robbery,
- Estafa (Swindling),
- Theft,
- Serious or Less Serious Physical Injuries,

(Acronym: **FRETS**)

he is found guilty of any of said crimes a **third time or oftener**.

CHAPTER 3: CONSTITUTIONAL LIMITATIONS ON CRIMINAL LAW & PENAL POWER

The legislative power to enact criminal statutes is not absolute. It is strictly bounded by the **Bill of Rights (Article III)** and core structural guarantees of the **1987 Philippine Constitution**.

3.1 Due Process of Law and Fair Notice (Article III, Section 1)

"No person shall be deprived of life, liberty, or property without due process of law, nor shall any person be denied the equal protection of the laws."

1. Mandatory Publication Requirement

Under the Due Process clause, a person cannot be bound by a penal law of which he had no fair notice.

- **Tañada v. Tuvera (136 SCRA 27 / 146 SCRA 446)**: The Supreme Court en banc ruled that **all statutes, including presidential decrees, executive orders, and administrative rules carrying penal sanctions, must be published in full in the Official Gazette or in a newspaper of general circulation** as an indispensable condition for their effectivity. The clause "unless it is otherwise provided" in Article 2 of the Civil Code refers solely to the date of effectivity, but never dispenses with the requirement of publication itself.
- **Pesigan v. Angeles (129 SCRA 174)**: Executive Order No. 626-A, which penalized the transport of carabaos with confiscation, was enforced against Pesigan before it was published in the Official Gazette. The Supreme Court declared the seizure illegal and held that penal presidential issuances cannot be enforced prior to their publication.

2. The Void-for-Vagueness Doctrine

A criminal statute is void for vagueness if it fails to give a person of ordinary intelligence fair notice that his contemplated conduct is forbidden by statute, or if it is so standardless that it encourages arbitrary and discriminatory law enforcement.

- **Alfredo Romualdez v. Sandiganbayan (G.R. No. 152259)**: The Supreme Court clarified that the void-for-vagueness doctrine applies to penal statutes via an **"as-applied" test**, not a facial challenge (facial challenges are reserved for First Amendment / free speech issues). In upholding Section 5 of R.A. 3019 (Anti-Graft Law), the Court ruled that the term "intervene" has an ordinary and well-understood meaning that provides sufficient fair notice to persons of common intelligence.

3.2 Prohibition Against Ex Post Facto Laws (Article III, Section 22)

"No ex post facto law or bill of attainder shall be enacted."

The Six Classifications of Ex Post Facto Laws (*In Re: Kay Villegas Kami, Inc.*, 35 SCRA 429; *Calder v. Bull*):

An **Ex Post Facto Law** is one which:

1. Makes an action, done before the passing of the law and which was innocent when done, criminal, and punishes such action.
2. Aggravates a crime, or makes it greater than it was, when committed.
3. Changes the punishment, and inflicts a greater punishment than the law annexed to the crime when committed (*People v. Villaraza*, 81 SCRA 95; *People v. Derillo*, G.R. No. 117818).
4. Alters the legal rules of evidence, and receives less or different testimony than the law required at the time of the commission of the offense in order to convict the offender.
5. Assuming to regulate civil rights and remedies only, in effect imposes a penalty or the deprivation of a right for something which when done was lawful.
6. Deprives a person accused of a crime of some lawful protection to which he has become entitled, such as the protection of a former conviction or acquittal, or a proclamation of amnesty.

Landmark Ex Post Facto Jurisprudence:

- **US v. Diaz Conde (42 Phil. 766)**: A loan contract charging interest lawful at the time of execution cannot be penalized by the subsequent enactment of the Usury Law.
- **People v. Villaraza (81 SCRA 95)**: Presidential Decree No. 818, which increased penalties for bouncing checks, cannot be applied retroactively to checks issued before its promulgation.
- **People v. Derillo et al. (G.R. No. 117818)**: Republic Act No. 7659 (re-imposing the death penalty in 1993) cannot be applied to a murder committed in 1982 when the death penalty was suspended by the 1987 Constitution.

3.3 Prohibition Against Bills of Attainder (Article III, Section 22)

A **Bill of Attainder** is a legislative act which inflicts punishment without a judicial trial.

- **Essential Elements:**

1. There is a legislative enactment.
 2. The enactment specifies particular persons or an easily ascertainable group.
 3. It inflicts punishment upon them directly.
 4. The punishment is inflicted without the safeguard of a judicial trial.
- **People v. Ferrer (48 SCRA 382)**: The Anti-Subversion Act (R.A. 1700), which outlawed the Communist Party of the Philippines, was challenged as a bill of attainder. The Supreme Court upheld the law, ruling that R.A. 1700 did not convict named individuals by legislative fiat; rather, it required the prosecution to prove before a court of law that the accused knowingly joined the organization with the specific intent to overthrow the government by force of arms.

3.4 Rights of the Accused & Custody of the Law (Article III, Section 14)

"In all criminal prosecutions, the accused shall be presumed innocent until the contrary is proved, and shall enjoy the right to be heard by himself and counsel..."

- **Jurisdiction over the Person vs. Custody of the Law:**
- **De Joya v. Jail Warden of Batangas City (G.R. Nos. 159418-19):** The Supreme Court held that while a court acquires jurisdiction over the person of the accused by arrest or voluntary surrender, **custody of the law** is required before an accused who is a fugitive from justice can seek affirmative judicial relief (such as a motion to quash a warrant of arrest). An accused cannot seek the protection of the judicial system while evading its processes.

3.5 Police Power vs. Fundamental Liberties (Article III, Sections 4 & 6)

- **Freedom of Movement and Right to Travel (Art. III, Sec. 6):**
- **Samahan ng mga Progresibong Kabataan (SPARK) v. Quezon City (G.R. No. 225442):** Curfew ordinances enacted by local government units restricting the nocturnal movement of minors were subjected to the **Strict Scrutiny Test**. The Supreme Court ruled that while the State has a compelling interest to protect youth from nocturnal dangers, curfew ordinances that fail to provide adequate exceptions (e.g., attending school, emergencies, lawful employment) are **unconstitutionally overbroad** and infringe on the fundamental right to travel. Furthermore, imposing penal sanctions (fines/imprisonment) directly on minors violates Section 57-A of **R.A. 9344 (Juvenile Justice and Welfare Act)**.

3.6 Prohibition Against Cruel, Degrading, or Inhuman Punishment (Article III, Section 19)

- **People v. Marivic Genosa (G.R. No. 135981):**
- Marivic Genosa killed her abusive husband while he was asleep after enduring years of severe domestic violence. The Supreme Court recognized the **Battered Woman Syndrome (BWS)** as a valid form of self-defense. Although the imminent danger requirement of traditional self-defense was not fully established at the exact moment of the killing, the Court held that the cumulative psychological battering constituted **two mitigating circumstances analogous to illness and passion/obfuscation (Art. 13, Par. 9 & 10, RPC)**, thereby reducing the penalty and ordering her immediate release. This landmark decision led to the statutory enactment of **Republic Act No. 9262 (Anti-VAWC Act)**, which formally codified BWS as a complete justifying circumstance.

CHAPTER 4: EXHAUSTIVE COMMENTARY ON ARTICLES 1 TO 10 OF THE REVISED PENAL CODE

REVISED PENAL CODE (ACT NO. 3815) - ARTICLES 1 TO 10		
Art. 1	Time when Act takes effect (January 1, 1932)	Statutory lineage
Art. 2	Application of its provisions	Territoriality & Exceptions
Art. 3	Definition & Classification of Felonies (Dolo vs Culpa)	Actus Reus & Mens Rea
Art. 4	Criminal Liability (Proximate Cause & Impossible Crimes)	Causation & Social Defense
Art. 5	Duty of the Court (Acts not covered & excessive penalties)	Separation of Powers
Art. 6	Stages of Execution (Attempted, Frustrated, Consummated)	Iter Criminis
Art. 7	When light felonies are punishable	Persons & Property rules
Art. 8	Conspiracy and Proposal to commit felony	Crime vs Collective Mode
Art. 9	Classification of Felonies according to gravity	Grave, Less Grave, Light
Art. 10	Offenses not subject to the provisions of this Code	Supplementarity Principle

ARTICLE 1: Time When Act Takes Effect

"This Code shall take effect on the first day of January, nineteen hundred and thirty-two."

Commentary & Legal Analysis:

1. Historical Lineage:

- Act No. 3815 was enacted by the Philippine Legislature on December 8, 1930, but its date of effectivity was fixed on **January 1, 1932** to allow the bench, bar, and public to study its provisions.
- It repealed the Royal Decree of 1886 which extended the Spanish Penal Code of 1870 to the Philippine Islands.

2. Statutory Integrity:

- Felonies committed prior to January 1, 1932 were governed by the old Spanish Penal Code, subject to the rule of favorable retroactivity under Article 22.

ARTICLE 2: Application of its Provisions

"Except as provided in the treaties and laws of preferential application, the provisions of this Code shall be enforced not only within the Philippine Archipelago, including its atmosphere, its interior waters and maritime zone, but also outside of its jurisdiction, against those who:

1. Should commit an offense while on a Philippine ship or airship;

2. Should forge or counterfeit any coin or currency note of the Philippine Islands or obligations and securities issued by the Government of the Philippine Islands;

3. Should be liable for acts connected with the introduction into these islands of the obligations and securities mentioned in the presiding number;

4. While being public officers or employees, should commit an offense in the exercise of their functions; or

5. Should commit any of the crimes against national security and the law of nations, defined in Title One of Book Two of this Code."

Detailed Clause-by-Clause Commentary:

- **Clause 1 (Philippine Ship or Airship):**
- Requires valid Philippine registration.
- Applies in international waters. In foreign territorial waters, the host nation may exercise jurisdiction if the crime affects its public peace (*English Rule*).
- **Clause 2 & 3 (Counterfeiting & Introduction of Currency/Securities):**
- Extraterritorial reach is necessary because economic sabotage committed abroad directly impairs the monetary sovereignty and stability of the Philippine Republic.
- **Clause 4 (Crimes Committed by Public Officers in the Exercise of Functions):**
- Limited strictly to offenses directly related to the discharge of official duties abroad (e.g., bribery, malversation, direct extortion, falsification of official documents).
- **Clause 5 (Crimes Against National Security & Law of Nations):**
- Treason, espionage, and piracy are universally punishable under the principle of protective and universal jurisdiction.

ARTICLE 3: Felonies (*Delitos*)

"Acts and omissions punishable by law are felonies (delitos)."

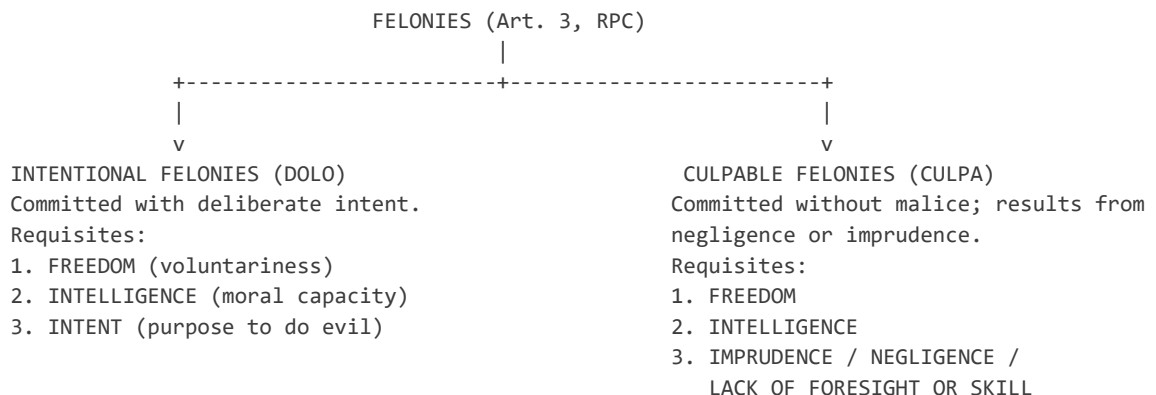
Felonies are committed not only by means of deceit (dolo) but also by means of fault (culpa).

There is deceit when the act is performed with deliberate intent; and there is fault when the wrongful act results from imprudence, negligence, lack of foresight, or lack of skill."

Elements of a Felony:

1. There must be an **act or omission**.
 - **Act:** Any bodily movement tending to produce some effect in the external world.
 - **Omission:** Inaction; the failure to perform a positive duty commanded by law (e.g., failure of an officer to deliver an arrested person to judicial authorities under Art. 125, or failure to render assistance under Art. 275).
2. The act or omission must be **punishable by the Revised Penal Code**.
3. The act or omission must be committed by means of **Dolo (Deceit / Deliberate Intent)** or **Culpa (Fault)**.

Classification of Felonies according to the Manner of Commission:



Distinction Between Imprudence and Negligence:

- **Imprudence (Deficiency of Action):** Indicates a deficiency of action. The actor acts with a lack of precaution or rashness (e.g., driving at breakneck speed through a crowded school zone).
- **Negligence (Deficiency of Perception):** Indicates a deficiency of perception. The actor fails to pay proper attention or foresee foreseeable harm (e.g., leaving a loaded firearm unattended on a living room table within reach of toddlers).

Mala in Se vs. Mala Prohibita:

Criterion	Mala in Se (Crimes inherently wrongful)	Mala Prohibita (Crimes prohibited by statute)
-----------	---	---

Nature	Inherently evil, immoral, and contrary to natural law (e.g., Murder, Rape, Theft).	Not inherently evil; wrongful only because prohibited by positive law for public welfare (e.g., illegal possession of firearms, B.P. 22).
Source of Law	Generally punished under the Revised Penal Code .	Generally punished under Special Penal Laws .
Role of Criminal Intent	Criminal Intent is an indispensable element. <i>Actus non facit reum nisi mens sit rea</i> (an act does not make a person guilty unless the mind is guilty).	Criminal Intent is immaterial. The only inquiry is whether the prohibited act was voluntarily committed.
Good Faith Defense	Valid defense. Good faith or absence of malice negates criminal liability.	NOT a valid defense. Good faith, lack of evil intent, or ignorance of the prohibition is immaterial.
Stages of Execution	Admits of attempted, frustrated, and consummated stages (Art. 6).	Generally, stages of execution are not recognized; the act is punished only when consummated.
Degree of Participation	Distinguishes between principals, accomplices, and accessories (Art. 16).	All who participate in the commission are generally punished as principals.

Mistake of Fact (*Ignorantia Facti Excusat*):

- **Doctrine of US v. Ah Chong (15 Phil. 488):**
- Ah Chong, fearing a break-in at his remote quarters, fatally stabbed his roommate Pascual, honestly believing in the darkness that Pascual was a burglar attacking him.
- The Supreme Court acquitted Ah Chong on the ground of **Mistake of Fact**.
- **Requisites of Mistake of Fact as an Exempting Circumstance:**
 1. The act done would have been lawful had the facts been as the accused believed them to be.
 2. The intention of the accused in performing the act was lawful.
 3. The mistake was based on reasonable grounds and was **free from negligence or fault** on the part of the accused.

(Note: If the mistake was attended by negligence, the actor is liable for a culpable felony under Art. 365).

Motive vs. Intent:

- **Intent:** The purpose to use a particular means to effect a definite result. Intent is an internal state of mind and an essential element of intentional felonies (*dolo*).
- **Motive:** The moving power or ulterior reason which impels a person to act for a definite result.
- **Rule:** Motive is generally **not an essential element of a crime** and need not be proved for conviction.

- **Exceptions (When Motive is Essential):**

1. Where the identity of the perpetrator is in doubt.
2. Where there is a question whether the accused acted in self-defense.
3. Where the evidence on the commission of the crime is purely circumstantial.
4. In cases of conflicting versions of how the incident occurred.

ARTICLE 4: Criminal Liability

"Criminal liability shall be incurred:

1. By any person committing a felony (delito) although the wrongful act done be different from that which he intended.

2. By any person performing an act which would be an offense against persons or property, were it not for the inherent impossibility of its accomplishment or on account of the employment of inadequate or ineffectual means."

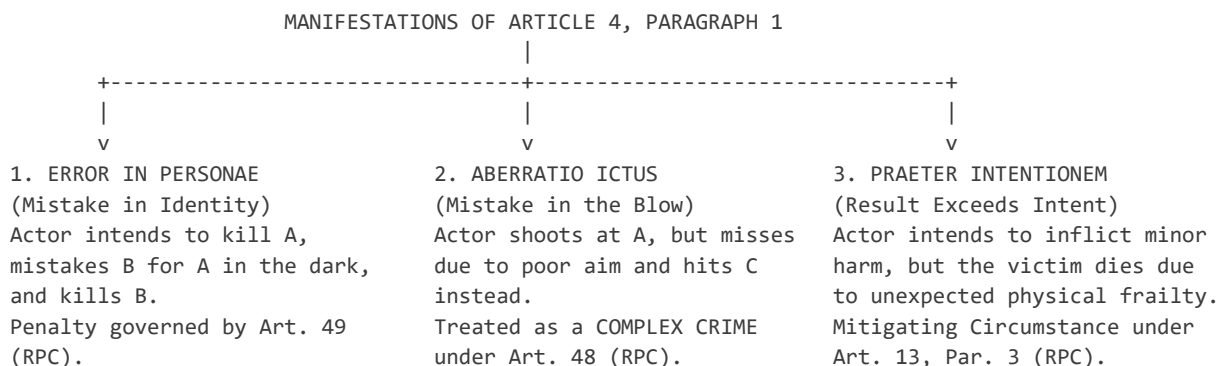
Paragraph 1: Proximate Cause & The Resulting Felony

"El que es causa de la causa es causa del mal causado" (He who is the cause of the cause is the cause of the evil caused).

Requisites for Criminal Liability under Article 4, Paragraph 1:

1. An **intentional felony** has been committed.
2. The wrongful act done be **different from that which the actor intended**.
3. The resulting injury or death is the **direct, natural, and logical consequence** of the felonious act committed.

The Three Classic Manifestations of Article 4(1):



Proximate Cause:

- That cause which, in natural and continuous sequence, unbroken by any efficient intervening cause, produces the injury, and without which the result would not have occurred (*Bataclan v. Medina*, 102 Phil. 181).
- **Pre-existing Conditions:** The offender is criminally liable for the resulting death even if the victim had a pre-existing illness (e.g., heart condition, hemophilia) that accelerated death, provided the blow inflicted by the offender contributed materially to the fatal outcome (*People v. Illustre*, 54 Phil. 594).
- **Intervening Cause (*Novus Actus Interveniens*):** An active, independent force that intervenes between the felonious act and the final result will break the chain of causation, relieving the original actor of liability for the ultimate result (e.g., gross medical malpractice or victim jumping into a deep river where the original wound was non-fatal).

Paragraph 2: Impossible Crimes**Rationale (Positivist Philosophy):**

The punishment of impossible crimes is a hallmark of the **Positivist School**. The actor is punished not for any actual injury caused (since no injury occurred), but for his **manifest criminal propensity and dangerous social tendency (*temeridad*)**.

Requisites of an Impossible Crime:

1. The act performed would be an **offense against persons** (e.g., Homicide, Murder, Physical Injuries) or **property** (e.g., Theft, Robbery, Estafa).
2. The act was performed with **evil intent / criminal design**.
3. Its accomplishment is **inherently impossible**, or the means employed were **inadequate or ineffectual**.
4. The act performed does **not** constitute a violation of another provision of the Revised Penal Code.

Types of Inherent Impossibility:

1. **Legal Impossibility:** When the intended acts, even if fully carried out, would not constitute a crime under the law (e.g., shooting a person who was already dead hours before; stealing one's own property believing it belongs to another).
2. **Physical Impossibility:** When extraneous physical conditions prevent the consummation of the offense (e.g., putting one's hand into an empty pocket with intent to steal; administering sugar believing it to be arsenic).

Penalty:

Under **Article 59 of the Revised Penal Code**, the penalty for an impossible crime is *arresto mayor* (1 month and 1 day to 6 months) or a fine ranging from 200 to 500 pesos (adjusted under R.A. 10951).

ARTICLE 5: Duty of the Court in Connection with Acts Which Should be Repressed but are Not Covered by the Law, and in Cases of Excessive Penalties

"Whenever a court has knowledge of any act which it may deem proper to repress and which is not

punishable by law, it shall render the proper decision, dismissing the case or acquitting the accused, and shall report to the Chief Executive, through the Department of Justice, the reasons which induce the court to believe that said act should be made the subject of penal legislation.

In the same way, the court shall submit to the Chief Executive, through the Department of Justice, such statement as may be deemed proper, without suspending the execution of the sentence, when a strict enforcement of the provisions of this Code would result in the imposition of a clearly excessive penalty, taking into consideration the degree of malice and the injury caused by the offense."

Commentary & Legal Principles:

1. First Paragraph (Acts not covered by law):

- Reaffirms the constitutional principle of **Separation of Powers** and **nullum crimen, nulla poena sine lege**.
- If an act is not prohibited by statute, the judge **MUST acquit the accused**. The court cannot invent a crime. The judge's sole recourse is to submit a formal report to the President recommending future legislation.

2. Second Paragraph (Excessive statutory penalties):

- When the mandatory penalty prescribed by law is overly harsh in comparison to the actual culpability of the offender (e.g., severe penalties for theft of small agricultural items under old statutes), the court **MUST still impose the legal penalty**, but may include a recommendation to the President for **executive clemency** (pardon or parole under Art. VII, Sec. 19 of the Constitution).

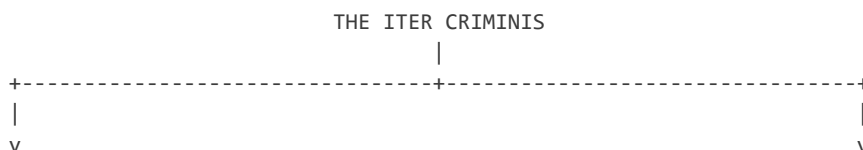
ARTICLE 6: Consummated, Frustrated, and Attempted Felonies

"Consummated felonies, as well as those which are frustrated and attempted, are punishable.

A felony is consummated when all the elements necessary for its execution and accomplishment are present; and it is frustrated when the offender performs all the acts of execution which would produce the felony as a consequence but which, nevertheless, do not produce it by reason of causes independent of the will of the perpetrator.

There is an attempt when the offender commences the commission of a felony directly by overt acts, and does not perform all the acts of execution which should produce the felony by reason of some cause or accident other than his own spontaneous desistance."

The *Iter Criminis* (Stages in the Development of Crime):



INTERNAL ACTS

Mere thoughts, ideas, plans.
NOT PUNISHABLE (Cogitationis
poenam nemo patitur).
(Generally not punishable)

acts commenced)

acts performed; no death)

elements achieved)

EXTERNAL ACTS

Covert & Overt Manifestations.

|

----> 1. Preparatory Acts

----> 2. ATTEMPTED STAGE (Overt

----> 3. FRUSTRATED STAGE (All

----> 4. CONSUMMATED STAGE (All

Analytical Comparison of the Three Stages of Execution:

Stage of Execution	Acts of Execution Performed	Was Subjective Phase Passed?	Why Felony Was Not Consummated
Attempted	Offender commences overt acts, but does NOT perform all acts of execution.	NO. Still in the subjective phase. Offender still has control over his acts.	By reason of some extraneous cause or accident other than his spontaneous desistance.
Frustrated	Offender performs ALL acts of execution necessary to produce the crime.	YES. The subjective phase is completed. Nothing more is left for the actor to do.	Due to causes independent of the will of the perpetrator (e.g., prompt medical intervention saves victim).
Consummated	Offender performs all acts and ALL legal elements of the felony are accomplished.	YES.	The crime is completely achieved.

The Subjective Phase vs. Objective Phase:

- **Subjective Phase:** That portion of the execution of the crime starting from the first overt act up to the moment when the offender has performed the last act that is within his control. If interrupted during this phase, it is **Attempted**.
- **Objective Phase:** That period following the subjective phase where the actor has no more control over the physical sequence of events. If the felony does not result despite all acts being performed, it is **Frustrated**.

Spontaneous Desistance:

- If the actor voluntarily stops and desists before performing all acts of execution, **he incurs NO criminal liability for the attempted felony.**
- **Policy Reason:** The law provides an incentive for the actor to return to the path of righteousness.

- **Limitation:** If the acts already performed before desistance already constitute a distinct crime in themselves (e.g., trespass to dwelling or slight physical injuries), he remains liable for that completed offense.

Crimes That DO NOT Admit of a Frustrated Stage:

1. **Theft:** The landmark en banc ruling in **Valenzuela v. People (G.R. No. 160188, June 21, 2007)** abolished the concept of "frustrated theft." Under Article 308 of the RPC, theft is consummated the very moment the offender obtains unlawful physical taking (*apoderamiento*) and control of the personal property, regardless of whether he was able to freely dispose of the stolen goods.
2. **Rape:** Consummated by the slightest penetration of the female pudenda (*labia majora*).
3. **Bribery:** Consummated upon acceptance of the gift/promise or rejected (attempted).
4. **Physical Injuries & Homicide/Murder without Intent to Kill:** Injuries are either consummated or non-existent.

ARTICLE 7: When Light Felonies are Punishable

"Light felonies are punishable only when they have been consummated, with the exception of those committed against persons or property."

Commentary & Exceptions:

- **General Rule:** Light felonies (punishable by *arresto menor* or fine under Art. 9) are punishable **only when consummated**.
- **Exception:** Light felonies committed against **Persons** (e.g., Slight Physical Injuries under Art. 266) or **Property** (e.g., Malicious Mischief under Art. 328, Alteration of Boundary Marks under Art. 313) are punishable **even if attempted or frustrated**.
- **Rationale:** Light felonies produce negligible social disturbance; hence, the state does not expend judicial resources punishing them at the preparatory or attempted stages unless they threaten human physical integrity or property rights.

ARTICLE 8: Conspiracy and Proposal to Commit Felony

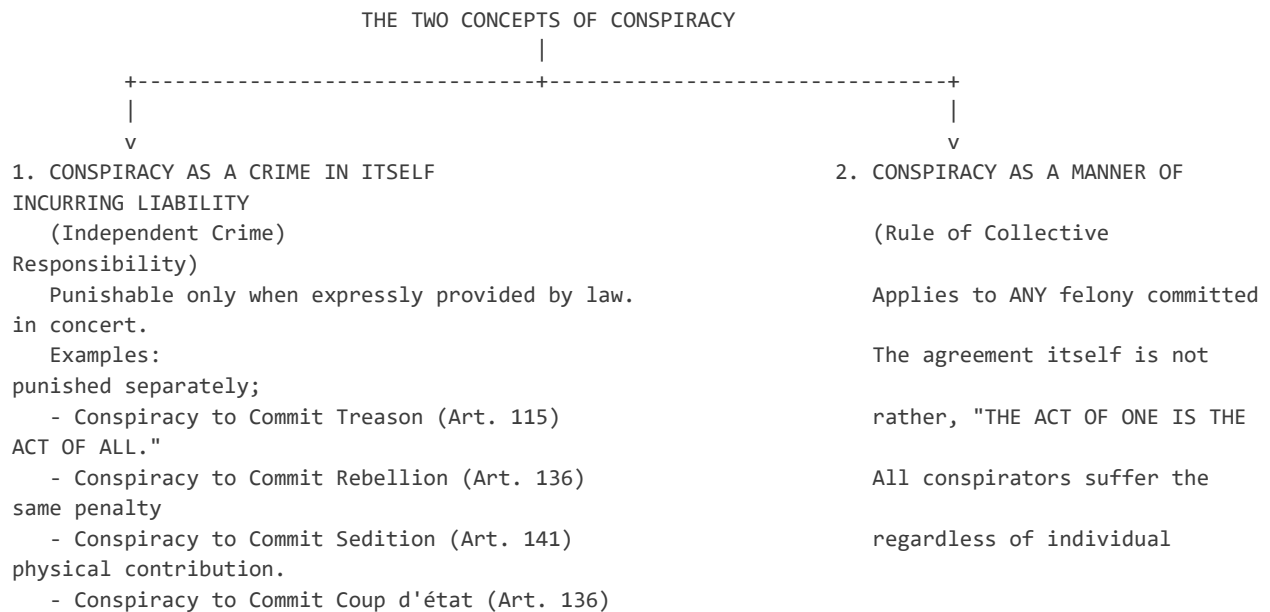
"Conspiracy and proposal to commit felony are punishable only in the cases in which the law specially provides a penalty therefor."

A conspiracy exists when two or more persons come to an agreement concerning the commission of a felony and decide to commit it.

There is proposal when the person who has decided to commit a felony proposes its execution to some

other person or persons."

Two Distinct Concepts of Conspiracy in Philippine Criminal Law:



Requisites of Conspiracy:

1. Two or more persons.
2. An agreement concerning the commission of a felony.
3. A conscious decision to commit the agreed felony.

Proof of Conspiracy:

Conspiracy may be proved by **direct evidence** (an express written or verbal pact) or by **circumstantial evidence** (a series of concerted, synchronized overt acts demonstrating a common criminal design and community of purpose).

Requisites of Proposal:

1. A person has decided to commit a felony.
2. He proposes its execution to some other person or persons.
3. *Note:* If the other person accepts the proposal, it ceases to be a mere proposal and ripens into a **Conspiracy**.

ARTICLE 9: Classification of Felonies According to Gravity

"Grave felonies are those to which the law attaches capital punishment or penalties which in any of their periods are afflictive, in accordance with Article 25 of this Code.

Less grave felonies are those which the law punishes with penalties which in their maximum period are correctional, in accordance with the above-mentioned article.

Light felonies are those infractions of law for the commission of which the penalty of arresto menor or a fine not exceeding 40,000 pesos, or both, is provided."

(Note: Fine threshold for light felonies amended from 200 pesos to 40,000 pesos pursuant to Republic Act No. 10951).

Summary Table of Felony Classifications:

Classification	Statutory Penalty (Art. 25, RPC)	Duration	Illustrative Felonies
Grave Felonies	Capital punishment (<i>Reclusion Perpetua</i>) or Afflictive Penalties (<i>Reclusion Temporal</i> , <i>Prision Mayor</i>).	6 years and 1 day to Life Imprisonment; Fines exceeding 1,200,000 PHP.	Murder (Art. 248), Parricide (Art. 246), Robbery with Homicide (Art. 294), Treason (Art. 114).
Less Grave Felonies	Correctional Penalties (<i>Prision Correccional</i> , <i>Arresto Mayor</i> , <i>Destierro</i>).	1 month and 1 day to 6 years; Fines from 40,000 PHP to 1,200,000 PHP.	Simple Seduction (Art. 338), Attempted Homicide (Art. 249 in rel. to Art. 51), Less Serious Physical Injuries (Art. 265).
Light Felonies	Light Penalties (<i>Arresto Menor</i> or Fine up to 40,000 PHP).	1 day to 30 days imprisonment.	Slight Physical Injuries (Art. 266), Malicious Mischief under 40k PHP (Art. 328).

ARTICLE 10: Offenses Not Subject to the Provisions of this Code

"Offenses which are or in the future may be punishable under special laws are not subject to the provisions of this Code. This Code shall be supplementary to such laws, unless the latter should specially provide the contrary."

The Principle of Supplementarity:

The Revised Penal Code serves as the **general supplementary law** for all Special Penal Laws, subject to two strict limitations:

1. The Special Penal Law does **not** specifically provide otherwise.

2. The legal concept in the RPC is compatible with the structure of the Special Penal Law.

When RPC Provisions Apply Supplementarily:

- **Article 100 (Civil Liability):** Exists in all offenses under special laws causing damage.
- **Article 39 (Subsidiary Imprisonment):** Applies when a special law offender fails to pay a fine, provided the special law has no contrary provision.
- **Article 45 (Confiscation of Instruments of Crime):** Applies to seized contrabands under special laws.
- **Article 22 (Retroactivity of Favorable Penal Laws):** Applies to special penal legislation.

When RPC Provisions DO NOT Apply:

- Rules on **Mitigating and Aggravating Circumstances (Articles 13 & 14)** and **Stages of Execution (Article 6)** generally do **NOT** apply to offenses *mala prohibita* under Special Penal Laws where intent is immaterial and penalties are fixed without period gradations.
-

CHAPTER 5: LANDMARK JURISPRUDENCE & CASE BRIEFS

This chapter presents comprehensive case briefs for the thirteen (13) benchmark Supreme Court precedents required by the Criminal Law syllabus.

CASE 1: People of the Philippines vs. Marivic Genosa

Citation: G.R. No. 135981 | September 29, 2000 & January 15, 2004 (En Banc)

Ponente: Panganiban, J.

Facts:

Marivic Genosa was subjected to severe, chronic physical, emotional, and psychological abuse by her husband Ben Genosa throughout their marriage. On the night of the incident, Ben arrived home intoxicated, violently assaulted Marivic despite her eight-month pregnancy, and threatened to kill her. After Ben fell asleep, Marivic, overwhelmed by terror, impending peril, and severe trauma, shot him with a firearm, resulting in his death. She was charged with Parricide and convicted with the death penalty by the trial court.

Issues:

1. Did the acute trauma of chronic domestic abuse constitute a valid defense under the **Battered Woman Syndrome (BWS)**?
2. Did treachery qualify the killing to murder/parricide?

Ruling & Supreme Court Doctrine:

1. **Recognition of Battered Woman Syndrome:** The Supreme Court formally recognized BWS as a viable form of self-defense. BWS is characterized by a three-phase cycle of violence: (a) tension-building phase, (b) acute battering incident, and (c) tranquil / loving contrition phase. A battered woman lives in a state of continuous, paralyzing psychological fear.
 2. **Mitigating Circumstances:** While traditional self-defense requires imminent unlawful aggression at the exact moment of defense (which was absent when Ben was asleep), the Court ruled that the cumulative battering produced two mitigating circumstances under Article 13: (a) an illness diminishing willpower (Par. 9), and (b) acting upon passion and obfuscation (Par. 10).
 3. **Absence of Treachery:** The Court held that treachery cannot be appreciated because the killing was the tragic culmination of ongoing domestic warfare, not a cold-blooded, deliberate execution. Her penalty was reduced to 6 years of *prision correccional* to 14 years of *prision mayor*, and having served her time, her immediate release was ordered. This decision spurred the passage of **R.A. 9262 (Anti-VAWC Act)**.
-

CASE 2: De Joya vs. Jail Warden of Batangas City

Citation: G.R. Nos. 159418-19 | December 10, 2003 (En Banc)

Ponente: Corona, J.

Facts:

An information for estafa was filed against Antonio De Joya. A warrant of arrest was issued by the Regional Trial Court. De Joya never surrendered to the authorities nor was he arrested; instead, while hiding abroad, he filed through counsel a petition to quash the warrant of arrest for lack of probable cause.

Issues:

May an accused who is not in custody of the law seek affirmative relief from the courts?

Ruling & Supreme Court Doctrine:

Jurisdiction over the Person vs. Custody of the Law: The Supreme Court held that while a court may have jurisdiction over the subject matter of an offense upon the filing of the information, **custody of the law is an absolute prerequisite for an accused to seek affirmative judicial relief.**

Custody of the law is acquired either by arrest or voluntary surrender. An accused who remains a fugitive from justice cannot invoke the court's processes to quash a warrant while simultaneously evading its authority.

CASE 3: People of the Philippines vs. Santiago

Citation: 43 Phil. 120 (1922)

Ponente: Malcolm, J.

Facts:

Santiago was prosecuted for reckless imprudence resulting in homicide. The information was captioned "The People of the Philippine Islands vs. Santiago." The accused challenged the validity of the complaint, arguing that under the Jones Law, criminal prosecutions had to be brought in the name of the "Government of the Philippine Islands."

Issues:

In whose name must criminal actions be prosecuted under Philippine sovereignty?

Ruling & Supreme Court Doctrine:

Crimes as Public Wrongs against Sovereignty: The Supreme Court affirmed that crimes are offenses against the sovereignty of the State and the public at large. Penal laws are enacted to maintain the social order. Prosecuting criminal actions in the name of the "People of the Philippine Islands" represents the sovereign power of the collective polity to vindicate public justice.

CASE 4: United States vs. Pablo

Citation: 35 Phil. 94 (1916)

Ponente: Torres, J.

Facts:

Andres Pablo, a municipal policeman, was tasked to investigate illegal gambling (*jueteng*). He apprehended gamblers but accepted money to testify falsely during the investigation that he found no gambling activity. He was charged with Perjury.

Issues:

Is a public officer who accepts a bribe to give false testimony liable for Perjury or Bribery?

Ruling & Supreme Court Doctrine:

Generality of Penal Laws & Duties of Public Officers: The Supreme Court ruled that a public officer who breaches his official oath and gives false testimony under oath is guilty of **Perjury** (in addition to potential liability for Bribery under separate counts). Public officers are subject to the generality of penal laws, and holding public office imposes an elevated duty of legal compliance and truthful disclosure.

CASE 5: In Re: Kay Villegas Kami, Inc.

Citation: G.R. No. L-32485 | October 22, 1970 (35 SCRA 429)

Ponente: Makasiar, J.

Facts:

Kay Villegas Kami, Inc., a socio-civic non-stock corporation, challenged Section 8(a) of Republic Act No. 6132 (1971 Constitutional Convention Act), which prohibited any political party or civic organization from supporting or campaigning for specific candidates for the Constitutional Convention. The petitioner claimed the law was an unconstitutional *ex post facto* law and a *bill of attainder*.

Issues:

1. Did Section 8(a) constitute an *ex post facto* law?
2. Did it constitute a *bill of attainder*?

Ruling & Supreme Court Doctrine:

1. **Ex Post Facto Law Defined:** The Supreme Court held that R.A. 6132 was **not** an *ex post facto* law because it operated **purely prospectively**. It penalized acts committed *after* its enactment during the upcoming Constitutional Convention election, not past innocent acts.
2. **Six Categories of Ex Post Facto Laws:** The Court re-affirmed the six classic categories of *ex post facto* legislation (see Chapter 3.2).
3. **Bill of Attainder Defined:** The Court held that the law was not a bill of attainder because it did not single out named persons to inflict punishment without trial; rather, it established a general statutory regulation enforceable solely through judicial prosecution.

CASE 6: People of the Philippines vs. Villaraza

Citation: G.R. No. L-46228 | January 17, 1978 (81 SCRA 95)

Ponente: Aquino, J.

Facts:

On January 10, 1975, the accused issued a bouncing check for 200 pesos in violation of Article 315 of the RPC. On October 22, 1975, Presidential Decree No. 818 was enacted, drastically increasing the penalties for estafa committed by means of bouncing checks to *prision mayor* and *reclusion temporal*. The trial court applied P.D. 818 to the accused.

Issues:

Can an amendatory law increasing penal sanctions be applied retroactively to acts committed before its enactment?

Ruling & Supreme Court Doctrine:

Non-Retroactivity of Unfavorable Penal Statutes: The Supreme Court held that P.D. 818 cannot be applied retroactively to checks issued before its promulgation. Applying increased penalties to past acts constitutes a direct violation of the **Constitutional prohibition against Ex Post Facto Laws (Art. 3, Sec. 22)**. Penal laws operate prospectively unless favorable to the accused (Art. 21 & 22, RPC).

CASE 7: United States vs. Diaz Conde

Citation: 42 Phil. 766 (1922)

Ponente: Johnson, J.

Facts:

In December 1915, the accused entered into a loan contract stipulating an interest rate that was lawful at the time. In May 1916, Act No. 2655 (The Usury Law) was passed, making interest rates above certain ceilings criminal. The borrowers initiated criminal charges against the lenders under the new Usury Law.

Issues:

Can a penal statute criminalize an act or contract that was lawful when entered into?

Ruling & Supreme Court Doctrine:

Protection Against Retroactive Penalization: The Supreme Court acquitted the defendants. An act which was lawful and innocent when performed cannot be converted into a crime by subsequent legislation. To hold a person criminally liable for a pre-existing lawful contract under a subsequent statute violates both the **Ex Post Facto Clause** and the **Non-Impairment of Contracts Clause** of the Constitution.

CASE 8: People of the Philippines vs. Derillo et al.

Citation: G.R. No. 117818 | April 18, 1997 (271 SCRA 633)

Ponente: Regalado, J.

Facts:

Derillo and his co-accused committed murder with robbery on October 22, 1982. At that time, the death penalty was suspended/abolished upon the ratification of the 1987 Constitution. On December 13, 1993, Republic Act No. 7659 took effect, re-imposing capital punishment for heinous crimes. The trial court imposed the death penalty on Derillo.

Issues:

May the death penalty under R.A. 7659 be imposed on a crime committed prior to the statute's effectivity?

Ruling & Supreme Court Doctrine:

Harsher Penal Laws Cannot Operate Retroactively: The Supreme Court modified the sentence to *reclusion perpetua*. Since the crime was committed in 1982 when the death penalty could not be legally executed, R.A. 7659 (being a harsher law) could not be given retroactive effect without violating the **Ex Post Facto Clause (Art. III, Sec. 22)**.

CASE 9: People of the Philippines vs. Ferrer

Citation: G.R. Nos. L-32613-14 | December 27, 1972 (48 SCRA 382)

Ponente: Castro, J.

Facts:

Feliciano De Sesto and Tayag were charged with violation of Republic Act No. 1700 (The Anti-Subversion Act), which declared the Communist Party of the Philippines an outlawed organization. The trial court dismissed the informations, declaring R.A. 1700 unconstitutional as a *Bill of Attainder*.

Issues:

Is R.A. 1700 an unconstitutional Bill of Attainder?

Ruling & Supreme Court Doctrine:

Bill of Attainder vs. Legislative Declaration: The Supreme Court reversed the trial court and upheld R.A. 1700. The Anti-Subversion Act is **not a bill of attainder** because:

1. The statute did not convict named individuals.
 2. It did not dispense with a judicial trial.
 3. To secure conviction, the prosecution was required to prove before a regular court that the defendant joined the outlawed party knowingly, willfully, and with the specific intent to advance its unlawful objective of violent government overthrow.
-

CASE 10: Pesigan vs. Angeles

Citation: G.R. No. L-64279 | April 30, 1984 (129 SCRA 174)

Ponente: Aquino, J.

Facts:

On April 2, 1982, Anselmo Pesigan transported 26 carabaos from Camarines Sur to Batangas. Police seized the carabaos pursuant to Executive Order No. 626-A (signed January 15, 1982), which prohibited inter-provincial movement of carabaos and provided for confiscation. However, E.O. 626-A was only published in the Official Gazette on **June 14, 1982**—two months *after* the seizure.

Issues:

Can a penal presidential issuance be enforced prior to its publication in the Official Gazette?

Ruling & Supreme Court Doctrine:

Publication as an Indispensable Condition of Due Process: The Supreme Court ruled the confiscation null and void. A presidential executive order prescribing penalties or forfeitures **cannot be enforced against the public before its publication in the Official Gazette**. Due process requires fair notice before criminal or confiscatory liability can attach.

CASE 11: Tañada vs. Tuvera

Citation: G.R. No. L-63915 | April 24, 1985 (136 SCRA 27) & December 29, 1986 (146 SCRA 446, Resolution)

Ponente: Escolin, J. / Cruz, J.

Facts:

Lorenzo Tañada and other civic leaders filed a petition for mandamus to compel government officials to publish in the Official Gazette numerous presidential decrees, letters of instructions, general orders, and executive orders issued by President Marcos that had not been published.

Issues:

Is publication in the Official Gazette an indispensable requirement for the effectivity of all laws?

Ruling & Supreme Court Doctrine:

Absolute Requirement of Full Publication:

1. **Rule:** All statutes, presidential decrees, executive orders, and administrative regulations of general application carrying penal sanctions must be published in full in the Official Gazette or in a newspaper of general circulation.
2. **The Due Process Rationale:** The clause "*unless it is otherwise provided*" in Article 2 of the Civil Code refers solely to the 15-day effectivity period, but never dispenses with the requirement of publication itself. Without publication, people cannot be presumed to know the law (*ignorantia legis neminem excusat*).

CASE 12: Alfredo Romualdez vs. Sandiganbayan

Citation: G.R. No. 152259 | July 29, 2004 (435 SCRA 371)

Ponente: Panganiban, J.

Facts:

Alfredo Romualdez was charged under Section 5 of R.A. 3019 (Anti-Graft and Corrupt Practices Act) for intervening in a government contract with the Presidential Commission on Good Government (PCGG) while being a relative within the third degree of the President. Romualdez challenged Section 5 as facially unconstitutional under the **Void-for-Vagueness Doctrine**, claiming the word "intervene" was excessively vague.

Issues:

1. Can a penal statute be challenged on facial invalidity under the void-for-vagueness doctrine?
2. Is Section 5 of R.A. 3019 void for vagueness?

Ruling & Supreme Court Doctrine:

1. **As-Applied Challenge in Penal Laws:** Facial challenges are permitted primarily in First Amendment (free speech) cases. Penal statutes may only be challenged as void for vagueness on an **"as-applied" basis** regarding the specific facts of the case.
2. **Fair Notice Test:** Section 5 is valid. The term "intervene" has an ordinary, common-sense meaning (to come between, mediate, or interfere) that provides clear and adequate notice to persons of ordinary intelligence.

CASE 13: Samahan ng mga Progresibong Kabataan (SPARK) vs. Quezon City

Citation: G.R. No. 225442 | August 8, 2017 (835 SCRA 350, En Banc)

Ponente: Perlas-Bernabe, J.

Facts:

The city councils of Manila, Quezon City, and Navotas enacted curfew ordinances prohibiting minors from being in public places between 10:00 PM and 5:00 AM. SPARK challenged the ordinances, asserting that they violated the constitutional right to travel, parental authority, and the Juvenile Justice and Welfare Act (R.A. 9344).

Issues:

1. Did the curfew ordinances violate the constitutional right to travel under the **Strict Scrutiny Test**?
2. Did the imposition of penal sanctions on minors violate R.A. 9344?

Ruling & Supreme Court Doctrine:

1. **Strict Scrutiny & Overbreadth:** Because fundamental constitutional liberties (the right to travel under Art. III, Sec. 6) were burdened, the ordinances were evaluated under the **Strict Scrutiny Test**. The Supreme Court held that the Manila and Navotas curfews were **unconstitutionally overbroad** because they lacked adequate exceptions for minors engaged in legitimate activities (e.g., attending night classes, church services, employment, or civic assemblies). The Quezon City ordinance was upheld because it provided comprehensive, narrowly tailored exceptions.
 2. **Prohibition of Penal Sanctions on Minors:** The Court ruled that local ordinances cannot impose criminal penalties (fines, imprisonment, or community service treated as criminal sanction) on minors, as **Section 57-A of R.A. 9344** expressly exempts children in conflict with the law from penal liability for status offenses/curfew violations.
-

CHAPTER 6: BAR EXAM REVIEWER & PRACTICAL PROBLEM SCENARIOS

This chapter provides comprehensive bar examination hypothetical problems and model answers formatted in the standard Philippine Bar **ALAC (Answer, Legal Basis, Application, Conclusion)** method.

Problem 1: Mistake in the Blow (**Aberratio Ictus**) vs. Mistake in Identity (**Error in Personae**)

Question:

Diego harbored deep resentment against Bruno. One dark evening, seeing a man walking down the street who resembled Bruno in build and clothing, Diego crept behind him and stabbed him in the back, killing him instantly. Upon turning the body over, Diego discovered to his horror that he had killed his own father, Carlos.

What crime or crimes did Diego commit, and how shall his criminal liability and penalty be determined?

Model Bar Examination Answer:

ANSWER:

Diego committed the crime of **Parricide** under Article 246 of the Revised Penal Code, with his penalty determined under the special rules of **Article 49 of the Revised Penal Code (Error in Personae)**.

LEGAL BASIS:

Under Article 4, paragraph 1 of the Revised Penal Code, criminal liability is incurred by any person committing a felony although the wrongful act done be different from that which he intended.

Where the felony committed is different from that intended due to a mistake in identity (*error in personae*), **Article 49 of the Revised Penal Code** provides that:

1. If the penalty for the felony intended is lower than that for the felony committed, the penalty for the **lesser crime shall be imposed in its maximum period**.
2. If the penalty for the felony committed is lower than that for the felony intended, the lesser penalty shall likewise be imposed in its maximum period.

APPLICATION:

Here, Diego intended to commit Murder against Bruno (punishable by *reclusion perpetua* to death under Art. 248), but through mistake in identity (*error in personae*), he killed his legitimate father Carlos, constituting Parricide (punishable by *reclusion perpetua* to death under Art. 246).

Because the statutory penalty for Murder and Parricide both carry *reclusion perpetua* to death, the court will apply the penalty prescribed for the intended crime (Murder) in its maximum period, taking into account any applicable mitigating circumstances. Diego cannot claim complete lack of intent to kill his father because his original act of stabbing a human being in the back was felonious *dolo*.

CONCLUSION:

Diego is guilty of Parricide, but sentenced pursuant to the penalty calibration of Article 49 of the Revised Penal Code.

Problem 2: Impossible Crime vs. Attempted Felony

Question:

Marco wanted to kill his business rival, Victor. Marco bought what he believed to be pure potassium cyanide from a street vendor. In reality, the vendor sold him ordinary white table sugar. Marco mixed five spoonfuls of the substance into Victor's coffee and served it. Victor drank the entire cup, remarked that the coffee was delightfully sweet, and suffered no physical harm whatsoever.

What crime did Marco commit? Explain fully.

Model Bar Examination Answer:

ANSWER:

Marco committed an **Impossible Crime** under Article 4, paragraph 2 in relation to Article 59 of the Revised Penal Code.

LEGAL BASIS:

Under Article 4, paragraph 2 of the Revised Penal Code, an impossible crime is committed when:

1. The act performed would be an offense against persons or property;
2. The act was performed with evil intent;
3. Its accomplishment is inherently impossible (either physically or legally), or the means employed are inadequate or ineffectual; and
4. The act does not constitute a violation of another provision of the Revised Penal Code.

APPLICATION:

In this scenario:

1. The intended act (killing Victor) would have been an offense against persons (Murder/Homicide).
2. Marco acted with unmistakable evil intent (*animus interficiendi*).
3. The accomplishment of the killing was inherently ineffectual and physically impossible because table sugar is non-toxic and incapable of causing death.
4. Marco's act did not constitute any other independent felony under the RPC.

Under the Positivist theory adopted in Article 4(2), Marco is punished for his dangerous subjective criminal propensity (*temeridad*).

CONCLUSION:

Marco is criminally liable for an Impossible Crime, punishable under Article 59 of the Revised Penal Code by *arresto mayor* or a fine.

Problem 3: Stages of Execution & Spontaneous Desistance

Question:

Lucio broke into the house of Teresa at midnight, carrying a crowbar and an empty duffel bag. After jimmying open the bedroom door, Lucio approached the jewelry safe and successfully dialed the combination lock. Just as he was about to open the safe door and grab the diamond necklaces inside, he heard Teresa's seven-year-old daughter crying in the next room. Overcome by a sudden pang of conscience, Lucio whispered, "*I cannot do this,*" left the safe closed, and climbed back out the window without taking any item.

Is Lucio criminally liable for Attempted Robbery? Explain.

Model Bar Examination Answer:

ANSWER:

No, Lucio is **NOT liable for Attempted Robbery** because his failure to complete the robbery was due to his own **spontaneous desistance**. However, he remains criminally liable for **Qualified Trespass to Dwelling**.

LEGAL BASIS:

Under Article 6, paragraph 3 of the Revised Penal Code, an attempted felony occurs when the offender commences the commission of a felony directly by overt acts, and does not perform all acts of execution by reason of some cause or accident **other than his own spontaneous desistance**.

Spontaneous desistance is an absolute bar to criminal liability for the attempted felony, provided the desistance occurs before the subjective phase is completed. However, spontaneous desistance does not exempt the actor from liability for any independent crime already fully consummated prior to desistance.

APPLICATION:

Here, Lucio commenced overt acts of Robbery by entering the house and opening the lock. However, before taking any property, he voluntarily stopped solely due to his own conscience, without any external physical intervention or police presence forcing him to stop. His desistance was spontaneous and voluntary.

Nevertheless, by breaking into Teresa's residence at midnight with a crowbar, Lucio had already fully consummated the independent offense of Qualified Trespass to Dwelling (Art. 280, RPC).

CONCLUSION:

Lucio is exempt from liability for Attempted Robbery due to spontaneous desistance, but is criminally liable for Qualified Trespass to Dwelling.

Problem 4: Generality & Diplomatic Immunity

Question:

Consul Jean-Pierre, the Consul-General of France in Manila, while driving his private vehicle to a weekend resort in Tagaytay, recklessly overtook a bus on a blind curve, resulting in a head-on collision that killed two passengers in another vehicle. When charged with Reckless Imprudence Resulting in Double Homicide under Article 365 of the RPC, Consul Jean-Pierre moved to dismiss the information, claiming complete diplomatic immunity under principles of Public International Law and the Generality exceptions of Criminal Law.

Rule on the motion to dismiss.

Model Bar Examination Answer:

ANSWER:

The motion to dismiss must be **DENIED**. Consul Jean-Pierre does not enjoy diplomatic immunity from criminal prosecution under Philippine penal law.

LEGAL BASIS:

Under Article 14 of the Civil Code, Philippine penal laws are obligatory upon all who live or sojourn in Philippine territory (Principle of Generality).

While customary international law and the Vienna Convention on Diplomatic Relations grant absolute immunity from criminal prosecution to foreign Sovereigns, Ambassadors, and Ministers Plenipotentiary, **Consular Officers (Consuls and Vice-Consuls) DO NOT enjoy diplomatic immunity from local criminal jurisdiction** (*Schneckenburger v. Moran*, 63 Phil. 249). Consuls are commercial representatives, not diplomatic envoys. Under the Vienna Convention on Consular Relations, consular officers are subject to arrest and prosecution for grave offenses and acts committed outside the scope of official consular functions.

APPLICATION:

Consul Jean-Pierre was driving a private vehicle on a personal recreational trip to Tagaytay when he committed the traffic felony. The act was not performed in the official exercise of consular functions, and as a consular officer, he possesses no blanket immunity from local criminal prosecution.

CONCLUSION:

The Regional Trial Court has full criminal jurisdiction over Consul Jean-Pierre. The motion to dismiss was properly denied.

APPENDIX A: CONSTITUTIONAL PROVISIONS MAPPING (1987 CONSTITUTION)

Constitutional Article & Section	Subject / Guarantee	Practical Doctrinal Impact in Criminal Law	Key Precedents
Article II, Section 5	Peace, order, life, liberty, property & general welfare.	Serves as the constitutional foundation of the State's Police Power (<i>Jus Puniendi</i>) to define and punish crimes.	<i>People v. Santiago</i> ; <i>SPARK v. Quezon City</i>
Article III, Section 1	Due Process and Equal Protection of the Laws.	Requires fair notice, prior mandatory publication of penal laws, and prohibits vague penal statutes.	<i>Tañada v. Tuvera</i> ; <i>Pesigan v. Angeles</i> ; <i>Alfredo Romualdez v. Sandiganbayan</i>
Article III, Section 4	Freedom of speech, expression, and the press.	Strict Scrutiny applied when penal statutes burden political speech or assembly.	<i>In Re: Kay Villegas Kami, Inc.</i> ; <i>People v. Ferrer</i>
Article III, Section 6	Liberty of abode and right to travel.	Limits police power curfews; restrictions on movement must be narrowly tailored with adequate exceptions.	<i>SPARK v. Quezon City</i>
Article III, Section 14	Presumption of innocence; rights of the accused; due process.	Requires guilt beyond reasonable doubt; custody of the law required to seek affirmative relief.	<i>People v. Genosa</i> ; <i>De Joya v. Jail Warden</i>
Article III, Section 19	Prohibition on cruel, degrading, or inhuman punishments.	Prohibits excessive penalties; bars retroactive death penalty execution.	<i>People v. Genosa</i> ; <i>People v. Derillo</i>
Article III, Section 22	Prohibition against Ex Post Facto Laws and Bills of Attainder.	Absolute ban on retroactive criminalization, increased penalties, or legislative punishment without trial.	<i>In Re: Kay Villegas Kami</i> ; <i>US v. Diaz Conde</i> ; <i>People v. Villaraza</i> ; <i>People v. Derillo</i> ; <i>People v. Ferrer</i>

Article VI, Section 1	Exclusive Legislative Power of Congress.	Exclusive authority of the Legislature to define crimes and prescribe penalties (<i>Separation of Powers</i>).	<i>People v. Santiago</i> ; <i>Tañada v. Tuvera</i>
Article VI, Section 11	Parliamentary Immunity.	Privilege from arrest for offenses punishable by ≤ 6 yrs during congressional session; absolute speech privilege.	<i>People v. Jalosjos</i> ; <i>Martinez v. Morfe</i>

APPENDIX B: QUICK REFERENCE COMPARATIVE MATRICES

Matrix 1: Stages of Execution (Article 6, RPC)

Stage Consummated	Overt Acts Performed	Phase of Iter Criminis	Reason Non-
ATTEMPTED accident	Commenced, but NOT all done	Subjective Phase	Extraneous cause /
FRUSTRATED of will	ALL acts of execution done	Objective Phase	Causes independent
CONSUMMATED	ALL acts done & accomplished	Completed	N/A (Consummated)

Matrix 2: Mala In Se vs. Mala Prohibita

Feature	Mala In Se	Mala Prohibita
Governing Statute	Revised Penal Code (RPC)	Special Penal Laws (SPL)
Moral Quality of Act prohibited	Inherently evil & immoral	Wrongful only because
Criminal Intent (Mens Rea)	Essential element	Immaterial
Good Faith Defense	Valid defense	Not a valid defense

Mitigating / Aggravating	Articles 13 & 14 Apply	Generally Do Not Apply
Stages of Execution	Attempted, Frustrated, Consummated	Consummated only
+-----+-----+-----		
---+		

